

GAHC010089362025



THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : MC/19/2025

JOGENDRA CHANDRA PAL
S/O LATE JOGESH CHANDRA PAL,
RESIDENT OF LANKESWAR GRANT, LANKA TOWN, MOUZA LANKA, PS
LANKA, DIST NAGAON, ASSAM 782446

2: JAYANTA PAL
S/O LATE JOGESH CHANDRA PAL

RESIDENT OF LANKESWAR GRANT
LANKA TOWN
MOUZA LANKA
PS LANKA
DIST NAGAON
ASSAM 782446

3: SMTI PRANITA PAL
D/O LATE JOGESH CHANDRA PAL

RESIDENT OF LANKESWAR GRANT
LANKA TOWN
MOUZA LANKA
PS LANKA
DIST NAGAON
ASSAM 782446

4: SMTI MANJU PAL
W/O NISHIKANTA DUTTA

RESIDENT OF LANKESWAR GRANT
LANKA TOWN
MOUZA LANKA
PS LANKA
DIST NAGAON
ASSAM 78244

VERSUS

ON THE DEATH OF SOLE RESPONDENT PRAMESH CHANDRA DAS, HIS
LEGAL HEIR SRI PRANSENJIT DAS ALIAS BAPPI
S/O LATE PRAMESH CHARAN DAS,
RESIDENT OF VILLAGE PUB BHALUKMARI, PO BHALUKMARI, PS
LANKA, DIST HOJAI, ASSAM 782442

2:SRI PULAK DAS

S/O LATE PRAMESH CHARAN DAS

RESIDENT OF VILLAGE PUB BHALUKMARI
PO BHALUKMARI
PS LANKA
DIST HOJAI
ASSAM 782442

3:SMTI PRATIMA DAS

D/O LATE PRAMESH CHARAN DAS

W/O SRI SANKAR DAS

RESIDENT OF NELIRPAR
WARD NO. 7
CHAPARMUKH
PO AND PS CHAPARMUKH
DIST NAGAON
ASSAM 78242

Advocate for the Petitioner : MR. S SARMA, MR S K DEKA,MR. C TALUKDAR,ARUNABH SARMA

Advocate for the Respondent : ,

Linked Case : RSA/14/2010

JOGENDRA CHANDRA PAL and 3 ORS

2: JAYANTA PAL

BOTH SONS OF LATE JOGESH PAL
R/O LANKESHWAR GRANT
LANKA TOWN

MOUZA LANKA
P.S. LANKA
DIST. NAGAON
ASSAM.

3: SMTI PRANITA PAL

D/O LATE JOGESH PAL

4: SMTI MANJU PAL

W/O SRI NISHIKANTA DUTTA
BOTH RESIDENTS OF LANKESHWAR GRANT
LANKA TOWN
MOUZA LANKA
P.S. LANKA
DIST. NAGAON
ASSAM.
VERSUS

ON THE DEATH OF SOLE RESPONDENT SRI PRAMESH CHANDRA DAS
HIS LEGAL HEIRS SRI PRASENJIT DAS @ BAPPI
R/O LANKESHWAR GRANT
LANKA TOWN
MOUZA LANKA
P.S. LANKA
DIST. NAGAON
ASSAM.

1.2:SRI PULAK DAS
R/O LANKESHWAR GRANT
LANKA TOWN
MOUZA LANKA
P.S. LANKA
DIST. NAGAON
ASSAM.

1.3:SMTI PRATIMA DAS
R/O LANKESHWAR GRANT
LANKA TOWN
MOUZA LANKA
P.S. LANKA
DIST. NAGAON
ASSAM.

Advocate for : K GOSWAMI
Advocate for : B K SINGH appearing for ON THE DEATH OF SOLE RESPONDENT

SRI PRAMESH CHANDRA DAS
HIS LEGAL HEIRS SRI PRASENJIT DAS @ BAPPI

BEFORE
HONOURABLE MR. JUSTICE PARTHIVJYOTI SAIKIA

ORDER

Date : 08.08.2025

Heard the learned Senior Counsel Mr. S Sarma assisted by Mr. T K Bhuyan appearing for the applicants.

This application has been filed under Order XLI Rule 9 of the Code of Civil Procedure read with Section 151 of the said Code praying for readmission of the Regular Second Appeal being RSA No. 14/2010, which was dismissed for default vide order dated 12.03.2024 passed in IA(C) No. 1449/2025.

The delay in filing the application under Order XLI Rule 9 of the Code of Civil Procedure praying for readmission of the RSA No. 14/2010 was allowed. Therefore, the prayer for restoration of appeal to file is also allowed.

The RSA No.14/2010 shall be restored to file and shall be listed for final hearing on 28th August, 2025.

It is further directed that the judgment and decree dated 20.08.2009 passed by the learned District Judge, Nagaon in Title Appeal No. 2/2006 shall remain stayed.

The Miscellaneous Case is accordingly disposed of.

JUDGE

Comparing Assistant